

		counsel of record. (Code Civ. Proc., § 2025.450(g).) Sanctions to be paid by July 31, 2026. Moving Party to give notice of this ruling.
3.	Mohareb vs. Kindred Hospital Brea 25-01536090	1. Motion to Compel Arbitration 2. Case Management Conference Defendants Kindred Hospital Brea; THC -Orange Count, LLC dba Kindred Hospital Brea; Kindred Healthcare Operating, LLC; and Kindred Healthcare, LLC’s Motion to Compel Arbitration is DENIED. “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4th 1164, 1169; (Code Civ. Proc, § 1281.2.) “California contract law applies to determine whether the parties formed a valid agreement to arbitrate.” (Id. at 1170.)¹ “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Here, Kindred Defendants submit the “Voluntary Alternative Dispute Resolution (ADR) Agreement” that was executed by Hanem Mohareb’s daughter, Plaintiff Iriny Ebid. In executing the ADR Agreement, Ms. Ebid certified her authority to consent on behalf of Ms. Mohareb to the terms of agreement. Under the ADR agreement, Ms. Ebid agreed on behalf of her mother that the ADR agreement “ ... covers any claim or action brought by a party other you (e.g. an action by your spouse, legal representative, agent, heir) arising out of relating to your hospitalization ... ”

By entering into the Voluntary ADR Agreement, Ms. Ebid agreed that any disputes with the hospital relating to her mother's medical care at Kindred Hospital Brea would be resolved by mediation preceding binding arbitration, not by filing a lawsuit. The ADR Agreement also presented that by opting for ADR, any such dispute relating to her mother's medical care would be decided without a jury, and Ms. Ebid agreed.

Kindred Defendants have met their initial burden in demonstrating the existence of an agreement to arbitrate. However, Plaintiff challenges the validity of such arbitration agreement.

No Actual or Ostensible Agency

Kindred Defendants argue that Ms. Ebid had the authority to execute the ADR Agreement on Ms. Mohareb's behalf without any evidence of a Power of Attorney or evidence that Ms. Ebid was acting as Ms. Mohareb's authorized agent.

Generally, a person who is not a party to an arbitration agreement is not bound by it. (Code Civ. Proc. § 1281.2.) "However, there are exceptions. For example, ... a person who is authorized to act as the [resident or] patient's agent can bind the [resident or] patient to an arbitration agreement." (*Rogers v. Roseville SH, LLC* (2022) 75 Cal.App.5th 1065, 1074.)

"An agent is one who represents another, called the principal, in dealings with third persons. Actual agency arises when the principal's conduct causes the agent reasonably to believe that the principal consents to the agent's act on behalf of the principal. Ostensible agency arises when the principal's conduct causes the third party reasonably to believe that the agent has the authority to act on the principal's behalf." (Ibid [citation modified].) "[A]n agency[, whether actual or ostensible,] cannot be created by the conduct of the agent alone; rather, conduct by the principal is essential to create the agency." (Ibid. [citation modified].)

"The party seeking to compel arbitration does not meet its burden of proving the existence of an arbitration agreement when it does not present any evidence that the purported principal's conduct caused the agent or the third party to believe that the agent had the authority to bind the principal." (Id. at 1075.)

Here, Kindred Defendants have presented no evidence that Ms. Mohareb did anything to lead Ms. Ebid to believe she had actual

authority to enter into an arbitration agreement on her behalf. Similarly, Kindred Defendants presented no evidence that Ms. Mohareb did anything to lead them to believe that Ms. Ebid had ostensible authority to do so. Instead, they argue Ms. Ebid had the authority to bind Ms. Mohareb based on the purported certification in the arbitration agreement that she was “authorized to act as Patient’s agent in executing and delivering on this Agreement. If signed by a Legal Representative, the representative certifies that the Facility may reasonably rely upon the validity and authority of the representative’s signature based upon actual, implied or apparent authority to execute this Agreement as granted by the patient.”

Courts, however, have consistently rejected this position in analogous contexts. (See *Valentine v. Plum Healthcare Group, LLC* (2019) 37 Cal.App.5th 1076 [the fact the plaintiff’s husband signed as his wife’s “representative” did not cast him the status of agent as there was no evidence the plaintiff designated her husband as her agent with authority to bind her, and no ostensible agency existed because the plaintiff did not reasonably cause defendants to believe the husband was authorized to execute the arbitration agreement for her.]; *Pagarigan v. Libby Care Center, Inc.* (2002) 99 Cal.App.4th 298, 301 [defendant did not prove actual or ostensible authority merely by presenting evidence that plaintiff’s daughter signed the arbitration agreement and thereby implicitly represented she had authority; any such representation is “totally irrelevant” because “[a] person cannot become the agent of another merely by representing herself as such.”].)

Ms. Ebid’s conduct alone cannot create an agency and there is no evidence that any conduct on Ms. Mohareb part justified a belief by Kindred Defendants that Ms. Ebid had the authority to sign the arbitration agreement on Ms. Mohareb’s behalf. Therefore, Kindred Defendants have failed to prove the existence of a valid agreement to arbitration.

Accordingly, the motion to compel arbitration is DENIED.

The Case Management Conference is CONTINUED to January 21, 2027, at 9:30 a.m. in Department C12.

Moving Party to give notice of this ruling.